



Vicarious Liability for Supervisory Harassment

Overview

An agency can be subject to vicarious liability for unlawful harassment perpetrated by a supervisor with immediate or successively higher authority over a complainant. If a supervisor's harassment results in a "tangible employment action," the agency will be liable for the harassment. If there is no tangible employment action, the agency may be able to raise an affirmative defense to liability for the harassment. *Burlington Industries, Inc. v. Ellerth*, [98 FEOR 9003](#), 524 U.S. 742, 118 S. Ct. 2257 (1998); *Faragher v. City of Boca Raton*, [98 FEOR 9002](#), 524 U.S. 775, 118 S. Ct. 2275 (1998). Although sexual harassment may be the type most familiar to practitioners, it is crucial for agencies to understand that viable harassment claims can be raised under any of the bases protected by Title VII, the Rehabilitation Act, the Age Discrimination in Employment Act, and the Genetic Information Nondiscrimination Act. Accordingly, policies and practices related to harassment must go beyond simply addressing sexual harassment.

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Key Points

These key-point summaries cannot reflect every fact or point of law contained within a source document. For the full text, follow the link to the cited source. The references to **Hadley** in this Quick Start Guide are to federal employment law expert Ernest Hadley's treatise, *A Guide to Federal Sector Equal Employment Law and Practice* (Dewey Publishing, Inc.), to which **cyberFEDS®** has exclusive V rights.

Defining supervisor

- An employee is a supervisor for purposes of Title VII vicarious employer liability only if empowered by the employer to take tangible employment actions against the victim. *Vance v. Ball State University*, [113 LRP 26073](#), 133 S. Ct. 2434 (2013), *aff'd*, 6 F.3d 461 (7th Cir. 2011).
- In the context of employer liability for a hostile work environment, an employee is considered a "supervisor" if the individual is "empowered by the employer to take tangible employment actions against the victim." An employee may, of course, have more than one supervisor. [EEOC Enforcement Guidance on Harassment in the Workplace](#).
- On rare occasions, the EEOC has applied the "alter ego" theory, a legal doctrine that allows an employer to be held liable for unlawful harassment of an employee when the harasser is not in the target employee's direct line of supervision but is of sufficiently high rank to be treated as the organization's proxy. *See, for example, Anne G. v. Department of Veterans Affairs*, [123 LRP 6603](#), EEOC No. 2022003036 (EEOC OFO 2023).

Hostile work environment

- To establish a viable claim of discriminatory harassment, a complainant must show that: 1) she belongs to a protected class; 2) she was subjected to unwelcome verbal or physical conduct involving the protected class; 3) the harassment complained of was based on the protected class; 4) the harassment had the purpose or effect of unreasonably interfering with her work performance and/or creating an intimidating, hostile or offensive work environment. *Charlie K. v. Equal Employment Opportunity Commission*, [117 LRP 5931](#), EEOC No. 0120142315 (EEOC 2017), *citing Humphrey v. U.S. Postal Service*, [99 FEOR 3090](#), EEOC No. 01965238 (EEOC 1998).
- In order to ultimately prevail on a claim of discriminatory harassment, a complainant must show that there is a basis to impute liability to the agency. *Bernstein v. Social Security Administration*, [107 LRP 68681](#), EEOC No. 0120072322 (EEOC OFO 2007).
- An agency can raise as an affirmative defense to liability by showing *both* that it exercised reasonable care to prevent and correct promptly any sexually harassing behavior, *and* that the plaintiff employee unreasonably failed to take advantage of any preventive or corrective opportunities provided by the employer or to avoid harm otherwise." *Burlington Industries, Inc. v. Ellerth*, [98 FEOR 9003](#), 524 U.S. 742, 118 S. Ct. 2257 (1998); *see also Faragher v. City of Boca Raton*, [98 FEOR 9002](#), 524 U.S. 775, 118 S. Ct. 2275 (1998). [EEOC Enforcement Guidance on Harassment in the Workplace](#).
- The Department of the Navy could not avoid liability for a rear admiral's sexual harassment of a public affairs specialist. Management took immediate and effective remedial action, including removing the rear admiral from his command position, when the specialist reported that he forcibly kissed her on the mouth. However, it could not establish the second prong of the defense to vicarious liability -- that she

"unreasonably failed to take advantage of any preventive or corrective opportunities provided by the employer or to avoid harm otherwise." *Susan M. v. Department of the Navy*, [123 LRP 19327](#), EEOC No. 2022001003 (EEOC OFO 2023).

- The male director of a facility set up a camera in the women's restroom and filmed women using the restroom. The agency found the director's actions created a sex-based hostile work environment for the female complainants, but argued it was not liable because it took immediate action. The EEOC did not agree. Although the agency may have been able to establish the first prong, it could not show that the complainants "unreasonably failed to take advantage of any preventive or corrective opportunities." *Scarlet M., Maxima R., and Sharolyn S. v. Department of the Navy*, [116 LRP 16231](#), EEOC Nos. 0120150940, 0120150941, 0120151220 (EEOC OFO 2016).
- In some cases, "unlawful harassment will occur and harm will result despite the exercise of requisite legal care by the employer and employee." While it may seem harsh to hold the "law-abiding employer" liable, "it is consistent with liability standards under the anti-discrimination statutes which generally make employers responsible for the discriminatory acts of their supervisors." Harassment "is the o type of discrimination carried out by a supervisor for which an employer can avoid liability, and that limitation must be construed narrowly." *Scarlet M., Maxima R., and Sharolyn S. v. Department of the Navy*, [116 LRP 16231](#), EEOC Nos. 0120150940, 0120150941, 0120151220 (EEOC OFO 2016).

Exercising reasonable care to prevent harassment -- policies and procedures

- Reasonable care generally requires an employer to establish, disseminate, and enforce an anti-harassment policy and complaint procedure and to take reasonable steps to prevent and correct harassment. *Felix R. v. National Aeronautics and Space Administration*, [121 LRP 32895](#), EEOC No. 2019002240 (EEOC OFO 2021).
- The [EEOC's Enforcement Guidance on Harassment in the Workplace](#) outlines the general features necessary for effective anti-harassment policies, complaint processes, and training.
- Even the best anti-harassment policy, complaint procedure, and training will not necessarily establish that the employer has exercised reasonable care to prevent harassment -- the employer must also implement these elements effectively. Thus, evidence that an employer has a comprehensive anti-harassment policy and complaint procedure will be insufficient standing alone to establish the first prong of the defense if the employer fails to implement these policies and procedures or to appropriately train employees. [EEOC Enforcement Guidance on Harassment in the Workplace](#).
- "Even though non-sexual harassment is the issue most frequently raised in EEO complaints, many agencies' policies fail to mention, and therefore presumably fail to cover, non-sexual harassment." [Policy and Guidance -- Model EEO Programs Must Have An Effective Anti-Harassment Program](#).
- "By educating employees and managers about harassment, agencies may help reduce the over-reported and inflated number of EEO complaints alleging non-sexual harassment." Further, the establishment of a comprehensive anti-harassment policy could then address the conduct that may not be appropriate for the EEO process before it becomes severe or pervasive. [Policy and Guidance -- Model EEO Programs Must Have An Effective Anti-Harassment Program](#).
- The EEOC's [Policy and Guidance -- Model EEO Programs Must Have An Effective Anti-Harassment Program](#) provides advice for developing adequate anti-harassment policies, tips for responding properly to claims of harassment, and links to recommended anti-harassment policies.

Harassment policy case examples

- A NASA employee was subjected to race and sex-based harassment by a supervisor who made insulting, humiliating, and stereotypical statements about the employee's sexual orientation and race. Although the harassment did not result in a tangible employment action, the agency was unable to raise an affirmative defense to liability because it failed to show it exercised reasonable care to prevent and prompt correct the supervisor's behavior. In part, the EEOC noted that the record lacked evidence of the most recent dissemination of an anti-harassment policy or when the employee received the policy. *Felix R. v. National Aeronautics and Space Administration*, [121 LRP 32895](#), EEOC No. 2019002240 (EEOC OFO 2021).
- The complainant, the chief of the administrative services division for the National Cemetery Administration, was harassed because of her race (African-American) when she was denied promotional opportunities, given a "dead-end" detail, and was subjected to disparate criticisms, rules, and expectations. The agency could not avoid liability because it did not have a harassment policy and complaints procedure in place at the time. *Complainant v. Department of Veterans Affairs, National Cemetery Administration*, 0120121920, [114 LRP 31204](#) (EEOC OFO 2014).
- The complainant was subjected to national origin-based harassment when a supervisor habitually made derogatory remarks about Puerto Ricans. The agency could not avoid liability for the harassment because it didn't have a harassment policy and complaint procedure in place at the time of the incidents at issue. *Torres v. Department of Homeland Security*, [106 LRP 1303](#), EEOC No. 01A55221 (EEOC OFO 2006).
- The complainant was subjected to supervisory harassment, including demeaning treatment on an almost daily basis, because he was a Hispanic male. The agency could not avoid liability because it did not exercise "its duty of reasonable care to prevent harassment." *Quinones v. Department of Homeland Security*, [106 LRP 20998](#), EEOC No. 01A53109 (EEOC 2006).
- There was no evidence that the agency had any procedure in place for the complainant to report the widespread race-based harassment she suffered at the hands of supervisors and coworkers. Because of the lack of preventive measures or an internal complaint process, the agency was liable for the hostile environment. *Coon v. Department of the Navy*, [102 FEOR 1162](#), EEOC No. 0199486 (EEOC OFO 2002).

Exercising reasonable care to correct harassment

- "When an employer becomes aware of alleged harassment, it has the duty to investigate the charges promptly and thoroughly. By 'thoroughly' the Commission means 'effectively,' taking whatever action necessary to end the harassment and prevent misconduct from recurring." *Thompson v. U.S. Postal Service*, [108 LRP 4682](#), EEOC No. 0120060791 (EEOC OFO 2008).

- **Hadley:** Whether the alleged harassment is being carried out by a supervisor or coworker, the EEOC requires that an agency take prompt and effective corrective action in order to avoid liability. The EEOC has made no distinction between cases involving harassment by a supervisor or coworker when it comes to evaluating whether an agency's actions were prompt and effective. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Prompt Remedial Action](#).
- An investigation is prompt if it is conducted reasonably soon after the employee complains, or the employer otherwise has notice of possible harassment. Clearly, an employer that opens an investigation into a complaint one day after it is made has acted promptly. By contrast, an employer that waits two months to open an investigation, absent any mitigating facts, very likely has not acted promptly. In many instances, what is "reasonably soon" is fact-sensitive and depends on such considerations as the nature and severity of the alleged harassment and the reasons for delay. [EEOC Enforcement Guidance on Harassment in the Workplace](#).
- An investigation is adequate if it is sufficiently thorough to "arrive at a reasonably fair estimate of truth." The investigation need not entail a trial-type investigation, but it should be conducted by an impartial party and seek information about the conduct from all parties involved. The alleged harasser therefore should not have supervisory authority over the individual who conducts the investigation and should not have a direct or indirect control over the investigation. If there are conflicting versions of relevant events, it may be necessary for the investigator to make credibility assessments to determine whether the alleged harassment in fact occurred. Accordingly, whoever conducts the investigation should be well-trained in the skills required for interviewing witnesses and evaluating credibility. [EEOC Enforcement Guidance on Harassment in the Workplace](#).
- To avoid liability, an employer must take corrective action that is "reasonably calculated to prevent further harassment" under the particular circumstances at that time. Corrective action should be designed to stop the harassment and prevent it from continuing. The reasonableness of the employer's corrective action depends on the particular facts and circumstances at the time the action is taken. [EEOC Enforcement Guidance on Harassment in the Workplace](#).
- The [EEOC's Enforcement Guidance on Harassment in the Workplace](#) states that the considerations that will be relevant in evaluating the reasonableness of an employer's corrective action include the following:
 1. Proportionality of the corrective action to the seriousness of the offense.
 2. Authority of the harasser.
 3. Whether harassment stops.
 4. Effect on the complainant.
 5. Options available to the employer.
 6. The extent to which the harassment was substantiated.

Agency fails to take appropriate action

- A supervisor's continuous belittling of an employee's disability and repeated questions about her retirement plans created a discriminatory hostile work environment. The agency could not avoid liability because management officials were aware of the supervisor's harassment but failed to take appropriate action. *Barbara R. v. Department of Agriculture*, [123 LRP 12620](#), EEOC No. 2022003131 (EEOC OFO 2023).
- A supply technician was subjected to disability-based harassment when a supervisor mimicked his disability during a meeting and then reacted with hostility when the technician asked him not to repeat the action. The agency could not avoid liability because it failed to take appropriate action, in part by delaying for almost four months before investigating the matter. *Damon Q. v. Department of Defense, Defense Logistics Agency*, [121 LRP 28952](#), EEOC No. 2020003388 (EEOC OFO 2021).
- The complainant, a master behavior detection officer at the Chicago O'Hare International Airport, was subjected to a hostile work environment on the basis of his age (60) and national origin (Irish) when his supervisor publicly ridiculed him on an almost daily basis. In part, the supervisor referred to him as "old, ugly, Irish guy" and "the oldest BDO in the program." He also asked the complainant insulting questions, such as, "Can you find your way there?" or, "Do you remember that?" The agency could not avoid liability because it failed to respond effectively to the complainant's repeated complaints. Although it eventually issued the supervisor a letter of reprimand, the degrading comments only increased in frequency. *Bryan T. v. Department of Homeland Security, Transportation Security Administration*, [116 LRP 14887](#), EEOC No. 0120122110 (EEOC OFO 2016).
- The complainant, a transportation security specialist at the Reno International Airport, was subjected to discriminatory harassment in retaliation for his prior EEO activity. His supervisor rejected his work reports, made inappropriate requests for medical documentation, told police the complainant was a suspect in a burglary at his worksite, and tried to inform a subsequent employer about the complainant's EEO activity. The agency could not avoid liability. The EEOC awarded the complainant \$125,000 in nonpecuniary damages and \$209,836 in attorney's fees. *Donny F. v. Department of Homeland Security, Transportation Security Administration*, [115 LRP 52574](#), EEOC No. 0720130035 (EEOC OFO 2015).
- The complainant was subjected to sexual harassment by a supervisor who made vulgar comments and touched her in an inappropriate manner over a two-year period. The agency was liable for its supervisor's misconduct because it failed to take effective action to stop it. In fact, its investigation was still ongoing two years after the incidents at issue. *Thompson v. U.S. Postal Service*, [108 LRP 4682](#), EEOC No. 0120060791 (EEOC OFO 2008).
- The agency subjected the complainant to a race-based hostile work environment when management officials undermined her supervisory position by excluding her from relevant meetings, ordering others to perform training that she was qualified to perform, berating and denigrating her work performance in front of subordinate employees, and ridiculing her abilities to function as a supervisor. The agency could not avoid liability because it failed to take corrective action or discipline the managers. *Richardson v. Department of Homeland Security*, [108 LRP 32130](#), EEOC No. 0120070003 (EEOC OFO 2008).
- The agency could not avoid liability for a supervisor's harassment of the complainant based on his race and color because its remedial actions did not end the harassment. The complainant continued to be the target of taunts and, though he was moved to another shop, the agency eventually tried to force him to return to the perpetrator's supervision. *Cheeks v. Department of the Army*, [112 LRP 7789](#), EEOC No. 0120091345 (EEOC OFO 2012).
- The complainant was subjected to sexual harassment by her supervisor when he rubbed her shoulders, put a bottle of oil on her desk for hair, had her pick up trash in front of his desk, and made a number of inappropriate comments, both to her and other employees. Given that

severe and long-lasting suffering that resulted from the harassment, the EEOC awarded the complainant \$100,000 in nonpecuniary damages, significantly more than the \$10,000 awarded by the agency. *Gray v. Department of the Interior, National Park Service*, [109 LRP 48581](#), EEOC No. 0120072136 (EEOC OFO 2009).

- A part-time housekeeping aide at an agency medical center was subjected to sexual harassment by a female supervisor who flirted with him, exposed her underwear to him, made comments about his body, attempted to kiss him, grabbed his buttocks, and propositioned him. The agency was liable for the harassment because removing the aide from his weekend shift and placing him on an undesirable schedule with other option to avoid the offending supervisor was not an effective response to the harassment. *Holmes v. Department of Veterans Affairs*, [107 LRP 66340](#), EEOC No. 0120055036 (EEOC OFO 2007).
- The complainant's supervisor subjected the complainant to disability and sex-based harassment, either tacitly or by failing to address a coworker's comments, despite the complainant's complaints. The agency failed to take immediate and appropriate corrective action given the evidence regarding the frequency and continuing nature of the harassment. There was no strong anti-harassment policy that was uniformly enforced throughout the facility and no clearly defined and effective complaint process for employees with allegations of harassment. *Horkan v. U.S. Postal Service*, [100 FEOR 3159](#), EEOC No. 01976837 (EEOC 2000).
- The agency was aware of a supervisor's harassing behavior toward women long before the complainant filed her EEO complaint. Accordingly, it could not logically follow that the agency took prompt or sufficient remedial action when it first learned there was a problem, and it therefore could not avoid liability for the supervisor's misconduct. *Manson v. Federal Emergency Management Agency*, [102 FEOR 1061](#), EEOC No. 01983878 (EEOC OFO 2001).
- The complainant was sexually harassed by her supervisor, who subjected her to numerous physical and verbal advances, and then retaliated against her when she rejected him. The EEOC found the agency liable, stating that it was "disturbed by the fact that all the agency officials involved in this matter seemed at a loss for what to do when confronted with [the complainant's] allegations of sexual harassment. The agency took none of the critical early steps which might have mitigated the harm to [the complainant]." *Whaley v. Department of the Army*, [99 FEOR 3050](#), EEOC No. 01963107 (EEOC 1998).
- The agency was liable for sexual harassment because its limited efforts failed to check a supervisor's unwanted attention to the complainant which resulted in persistent rumors that she was engaged in an affair with him. *Mangano v. Department of Justice*, [99 FEOR 3183](#), EEOC No. 01971055 (EEOC 1999).

Failure to take advantage of corrective opportunities or avoid harm

- The second prong of the affirmative defense requires the employer to show that the complainant "unreasonably failed to take advantage of any preventive or corrective opportunities provided by the employer or to avoid harm otherwise." If an employer has exercised reasonable care, it will not be liable if the complainant could have avoided all harm from unlawful harassment but unreasonably failed to do so. In addition, if the employee unreasonably delayed complaining and an earlier complaint could have avoided some but not all of the harm from the harassment, then the employer might be able to use the affirmative defense to reduce damages, even if it could not eliminate liability altogether. [EEOC Enforcement Guidance on Harassment in the Workplace](#).
- **Hadley:** An agency can avoid liability for supervisory harassment if it can show, in addition to the fact that it exercised reasonable care preventing and correcting harassing behavior that the complainant "unreasonably failed to take advantage of any preventive or corrective opportunities provided by the employer or to avoid harm otherwise." The burden is on the agency to show that the employee's failure to take advantage of preventive or corrective opportunities to avoid harm was unreasonable. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Failure to Avoid Harm](#), citing *Faragher v. City of Boca Raton*, [98 FEOR 9002](#), 524 U.S. 775, 118 S. Ct. 2275 (1998).
- In assessing whether a complainant unreasonably failed to take advantage of preventive or corrective opportunities, practitioners should keep in mind that harassment sometimes builds over time, and the EEOC is disinclined to fault a complainant who overlooks a few incidents before complaining. See, for example, *Complainant v. Department of the Army*, 0120111865, [114 LRP 32221](#) (EEOC OFO 2014).
- An 18-year-old intern for the Army was subjected to sexual harassment by a supervisor who hugged her, asked her to send photographs of herself in a bathing suit, and kissed her. The agency could not avoid liability. Evidence supported the intern's claims and the EEOC found reasonable that she initially tried to ignore the incidents, hoping the harassment would stop. Once it escalated to physical sexual conduct, she immediately reported the matter. *Complainant v. Department of the Army*, 0120111865, [114 LRP 32221](#) (EEOC OFO 2014).
- The agency was not liable for a supervisor's sexual harassment, which included frequent inappropriate and derogatory comments, because its anti-harassment policy was well-communicated, the complainant unreasonably delayed for over nine months before reporting the harassment, and the agency took immediate and appropriate action once the complainant notified management. *Michelle G. v. Department of Veterans Affairs*, [122 LRP 6891](#), EEOC No. 2021003010 (EEOC OFO 2022).
- Even if a supervisor subjected the complainant to inappropriate advances as she alleged, the agency avoided liability because she unreasonably failed to take advantage of preventive or corrective opportunities. The agency had a policy against sexual harassment and the complainant received training regarding the EEO process four times during her employment with the agency, but she did not notify anyone about the supervisor's conduct until after the agency proposed her removal. *Ebony M. v. Department of Homeland Security*, [115 LRP 55595](#), EEOC No. 0120132209 (EEOC OFO 2015).
- The complainant was subjected to a hostile work environment through her supervisor's sexual advances, but the agency avoided liability. provided her with appropriate training on sexual harassment and it separated the parties when it became evident they were engaged in a sexual relationship. Further, the complainant unreasonably failed to take advantage of corrective opportunities when she did not raise the issue of sexual harassment until after the Office of Internal Affairs began an investigation into her relationship with the supervisor. *Ryan Department of Justice*, [109 LRP 10326](#), EEOC No. 0120062637 (EEOC OFO 2009).
- Two male supervisors subjected the complainant to a sexually hostile work environment, but the agency was not liable for the misconduct had an adequate anti-harassment policy and acted immediately to end the harassment. Further, the complainant failed to take advantage of the preventive opportunities offered by management. *Bernstein v. Social Security Administration*, [107 LRP 68681](#), EEOC No. 0120072322 (EEOC OFO 2007).

- A mean-tempered superior was more hostile to women employees, but the complainant's claim of sex-based harassment failed because the superior was not particularly severe with her and because she unreasonably failed to take advantage of corrective opportunities when she did not complain until he was dismissed. Also, the agency took immediate and appropriate action after learning of his misconduct. *Cone v. Department of the Air Force*, [100 FEOR 3009](#), EEOC No. 01973350 (EEOC 1999).
- Although the complainant noted an earlier incident wherein a supervisor hit her on her "left flank" when she asked him what a "flank" was, the complainant's failure to complain about this incident was not unreasonable. Accordingly, the agency could not raise an affirmative defense when the supervisor subsequently touched the complainant in intimate areas. *Lans v. Social Security Administration*, [101 FEOR 3001](#), EEOC No. 01980670 (EEOC 2000), *request for reconsideration denied*, [101 FEOR 1127](#), EEOC No. 05A10006 (EEOC OFO 2001).
- The 4th U.S. Circuit Court of Appeals affirmed the grant of summary judgment for the agency after determining that it successfully raised an affirmative defense to vicarious liability. The plaintiff complained about a superior's sexual misconduct at a conference but attended another conference with him and placed herself in a compromising position. The agency had a viable anti-harassment policy and responded promptly to her complaints, and the plaintiff failed to "avoid harm otherwise" when she voluntarily placed herself in a situation that allowed the superior to repeat his misconduct. *Brown v. Department of Defense*, [99 FEOR 7087](#), 184 F.3d 388 (4th Cir. 1999).
- A supervisor subjected the complainant to a hostile work environment with his frequent humiliation and intimidation of women. Although the agency argued that it took appropriate action, it could not avoid liability because it could not prove the second prong of the affirmative defense: that the complainant acted unreasonably. *Fivecoat v. Department of the Air Force*, [112 LRP 27262](#), EEOC No. 0720110035 (EEOC OFO 2012).
- The agency was liable for sexual harassment when an acting supervisor touched the complainant in an intimate manner on two occasions and made a lewd comment to her. It could not show the complainant unreasonably failed to take advantage of any preventive or corrective opportunities provided. *Montoya v. U.S. Postal Service*, [103 LRP 7592](#), EEOC No. 01A21475 (EEOC OFO 2003).
- The EEOC found that since the agency failed to establish the second prong of the defense -- that the complainant unreasonably failed to take advantage of preventive or corrective measures -- the agency was liable for the harassment without further need to consider whether the complainant could establish the first prong of the defense. *Lans v. Social Security Administration*, [101 FEOR 1127](#), EEOC No. 05A10006 (EEOC OFO 2001).

Tangible employment action harassment

- **Hadley:** The liability rule for tangible employment action harassment cases is simple. An agency is strictly liable for the sexual harassment by a supervisor or manager when it results in a personnel action. By definition, tangible employment action harassment involves a supervisor or manager because it requires that the perpetrator be in a position to take a personnel action against or bestow an employment advantage on the victim. It does not matter whether the agency knew or should have known of the harassment, or even if the employer forbids such conduct. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Tangible Employment Action Harassment](#), citing *Burlington Industries, Inc. v. Ellerth*, [98 FEOR 900](#); 524 U.S. 742, 118 S. Ct. 2257 (1998); *Faragher v. City of Boca Raton*, [98 FEOR 9002](#), 524 U.S. 775, 118 S. Ct. 2275 (1998).
- **Hadley:** The rationale for holding employers strictly liable for tangible employment action harassment also is simple. The supervisor or manager who bases employment decisions [on discriminatory motives] is aided in his harassment by the employment -- i.e., agency -- relationship. [Hadley Guide to Federal Sector Equal Employment Law and Practice: Tangible Employment Action Harassment](#).
- If the victim of unlawful harassment is the subject of a "tangible employment action," the agency has no defense to liability or damages. *Burlington Industries, Inc. v. Ellerth*, [98 FEOR 9003](#), 524 U.S. 742, 118 S. Ct. 2257 (1998); *Faragher v. City of Boca Raton*, [98 FEOR 9002](#), 524 U.S. 775, 118 S. Ct. 2275 (1998).
- A "tangible employment action" means a "significant change in employment status" that requires an "official act" of the employer. Examples of tangible employment actions include hiring and firing, failure to promote, demotion, reassignment with significantly different responsibilities, a compensation decision, and a decision causing a significant change in benefits. In some cases, a decision may constitute a tangible employment action even though it does not have immediate direct or economic consequences, such as a demotion with a substantial reduction in job responsibilities but without a loss in pay. [EEOC Enforcement Guidance on Harassment in the Workplace](#).

Tangible employment actions -- case examples

- A nurse practitioner was subjected to harassment based on his disability and EEO activity when the agency revoked his telework privilege assigned him a disproportionately high patient load, and assigned him to COVID-19 screening duties in spite of his documented health risks. The agency was liable because the hostile work environment was created by a supervisor and included tangible employment actions. *Ja C. v. Department of Veterans Affairs, Veterans Health Administration*, [123 LRP 17223](#), EEOC No. 2022003169 (EEOC OFO 2023).
- An HR specialist for the National Park Service was subjected to a hostile work environment based on sex (male/sexual orientation) when a supervisor made comments about his sexual orientation in a chat with a coworker and the supervisor was condescending to him in emails attacked him about his breaks and lunch periods, managed his movements, and excluded him in the office. The EEOC found that the agency could not avoid liability for the hostile work environment because the supervisor's strict control over the specialist, who was supposed to be on a maxiflex schedule, constituted a tangible employment action as it altered the terms and conditions of his employment. *Nathanial v. Department of the Interior, National Park Service*, [122 LRP 4454](#), EEOC No. 2021000613 (EEOC OFO 2022).
- The complainant's supervisor harassed and terminated her because of her pregnancy. Although she was reinstated, she was later constructively discharged because the agency refused to place her with a different supervisor at the end of her maternity leave. The agency could not avoid liability because the supervisor's harassment culminated in the complainant's termination. *Kiera H. v. Department of the Air Force*, [115 LRP 9438](#), EEOC No. 0520140092 (EEOC OFO 2015).
- The complainant, a motor vehicle operator, was subjected to discriminatory harassment when a transportation officer treated her differently than male drivers and gave her undesirable assignments. The agency could not avoid liability because the harassment resulted, at least in

part, in tangible employment actions. *LaBastide v. Social Security Administration*, [113 LRP 37759](#), EEOC No. 0120102267 (EEOC OFO 2013).

- The complainant was subjected to sexual harassment by a supervisor who asked her to go out on a date. The agency could not avoid liability because the harassment culminated in a tangible employment action -- the complainant's termination. *Greene v. Department of Veterans Affairs*, [111 LRP 58700](#), EEOC No. 0120090106 (EEOC OFO 2011).
- The complainant was subjected to a hostile work environment in reprisal for his EEO activity after he requested a reasonable accommodation for his disability. He was singled out for increased scrutiny, issued six letters of warning, subjected to three official discussions, was suspended, and had leave denied on numerous occasions. Because the harassment culminated in tangible employment actions, the agency could not raise an affirmative defense. *Cahn v. U.S. Postal Service*, [108 LRP 51933](#), EEOC No. 0720060029 (EEOC OFO 2008).
- The agency was liable for national origin-based harassment that exacerbated the complainant's depression and ultimately resulted in his termination. The agency could not avoid liability because a supervisor engaged in harassment that resulted in a tangible employment action -- the complainant's removal. *Arcinue v. Department of the Navy*, [108 LRP 24668](#), EEOC No. 0520051034 (EEOC OFO 2008).
- The complainant prevailed on her claim that she was subjected to sexual harassment by a supervisor, who issued her a letter of warning and a letter of removal soon after learning that she sought EEO counseling about his misconduct. The agency could not avoid liability because the harassment culminated in tangible employment actions that were unwarranted under the circumstances. *Smalls v. U.S. Postal Service*, [107 LRP 19888](#), EEOC No. 0120053018 (EEOC OFO 2007).
- Because the offending supervisor subjected the complainant to a tangible employment action -- reassignment -- after she rejected his sexual advances, the agency had no defense to liability for sexual harassment. The complainant was awarded \$30,000 in nonpecuniary compensatory damages. *Riley v. U.S. Postal Service*, [103 LRP 36454](#), EEOC No. 07A30004 (EEOC OFO 2003).

Other Resources

- [Quick Start Guide: Sexual Harassment -- EEO](#)
- [Quick Start Guide: Hostile Work Environment](#)
- [Chart: Severe or Pervasive Harassment in EEO Complaints](#)
- [EEOC Enforcement Guidance on Harassment in the Workplace](#)
- [Policy and Guidance -- Model EEO Programs Must Have An Effective Anti-Harassment Program](#)
- [Report of EEOC Select Task Force on the Study of Harassment in the Workplace Program](#)
- For more guidance, see:
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 12 -- Theories of Discrimination -- Harassment, Subchapter 04 -- Overview of Liability for Harassment, Section -- Tangible Employment Action Harassment](#)
 - [Hadley Guide to Federal Sector Equal Employment Law and Practice: Chapter 12: Theories of Discrimination -- Hostile Environment, Subchapter 4: Overview of Liability for Harassment, Section D: Hostile Environment Harassment -- Supervisors](#)

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